

23CV04374 Lilly Teisher vs Steven R Andrade et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-09-18

Motion: Motion: Summary Judgment

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/23cv04374-4>

Source SHA-256: 03e4239a0c596937664cf508d1ae83e53068e20ff8f55d89917a67d6e13983a8

Tentative Ruling: Lilly Teisher vs Steven R Andrade et al

Case Number

23CV04374

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 09/18/2026 - 10:00

Nature of Proceedings

Motion: Summary Judgment

Tentative Ruling

For all reasons discussed herein, Andrade Investments LLC, Steven R. Andrade, and Michael Andrade's motion for summary judgment is denied. The motion for summary adjudication, as to Steven R. Andrade only, is granted.

Background:

This action commenced on October 4, 2023, by the filing of the original complaint by plaintiff Lilly Teisher ("plaintiff") against defendants Andrade Investments, LLC ("Andrade Investments"), Steven R. Andrade ("Steven"), Sigma Nu Fraternity ("Sigma Nu National"), Sigma Nu Kappa Eta Chapter ("Kappa Eta"), and Regents of the University of California ("Regents").

Plaintiff filed her first amended complaint ("FAC") on December 22, 2023, and UCSB demurred to the fifth cause of action for Negligent Undertaking and the sixth cause of action for Dangerous Condition of Public Property.

On April 26, 2024, the demurrer of UCSB to the fifth and sixth causes of action was sustained with leave to amend.

On May 6, 2024, plaintiff filed the operative second amended complaint ("SAC"), setting forth the same six causes of action. Those causes of action are: (1) Negligence - Premises Liability as to Andrade Investments; (2) Negligence - Premises Liability as to Steven Andrade ("Steven"); (3) Negligence - Premises Liability as to Kappa Eta and Sigma Nu National; (4) Negligent Undertaking as to Sigma Nu National; (5) Negligent Undertaking as to Regents; and (6) Dangerous Condition of Public Property as to Regents.

The basic facts of the SAC are similar to those alleged in the FAC, but plaintiff has added some additional allegations. As alleged:

Defendant Kappa Eta is a branch of defendant Sigma Nu National that operates a fraternity house located at 6587 Del Playa Drive in Goleta, California (the "subject property"), less than two miles from the campus of the University of California, Santa Barbara ("UCSB"). (SAC, ¶¶ 9, 30.) The fraternity house is owned by defendants Steven R. Andrade and Andrade Investments (collectively, the Andrade defendants). (Id. at ¶¶ 3, 6, 7, 30.)

"Every Spring since 2004, a beach party known as 'Deltopia' takes place in the streets of Isla Vista, involving massive crowds of college students and day-drinking events. Deltopia was originated by [UCSB] students and occurs at the start of UCSB's spring quarter around Del Playa Drive. The event centers around Del Playa Drive. Each year, Deltopia attracts more attendees, sometimes as many as 25,000. Historically, the event has seen numerous arrests and injuries causing local authorities to allocate more resources in response. Defendant UC Regents was aware that Deltopia occurred every year. Defendant UC Regents was aware that the event posed a serious risk of underage drinking, injury, and death to UCSB students and other individuals attending the event. Despite its knowledge, Defendant UC Regents never took any steps to prevent the event, monitor the event, or make the event safer. To the contrary, Defendant UC Regents actively encouraged and benefited from Deltopia and allowed various Deltopia events to occur at UCSB facilities, both before and after Plaintiff was injured. In fact, UCSB has a historical and ongoing campus culture issue that promotes partying, overconsumption of alcohol, and drug use, that results in a dangerous condition to students and visitors. Rather than take measures to prevent this campus culture, UCSB promotes and encourages the culture to increase its admission applicants." (SAC, ¶ 20.)

"UCSB provides restrictions on Deltopia events including 'Any party or gathering that violates the county outdoor festival and social host ordinance, which prohibits paid entry, alcohol sales, attendance above 250 people and allowing people in rooftops or cliffs, among other things, will be shut down by law enforcement.' During Deltopia, UCSB Campus Police coordinate efforts with local law enforcement to patrol, monitor, and enforce these regulations and safety at Deltopia events on and off campus in Isla Vista and Goleta neighborhoods." (SAC, ¶ 22.)

"Deltopia is well-known to create unsafe situations. In April 2013, a student from Cal Poly traveled to Deltopia to participate in the event and was found dead on the beach after engaging in Deltopia activities. On April 6, 2013, four UCSB students were hospitalized when a balcony at 6643 Del Playa Drive collapsed. On April 2, 2022, the annual Deltopia event took place and following the pattern of students being injured in prior years, [plaintiff] was injured in connection with the event." (SAC, ¶ 25.)

"A makeshift wooden 'step' and 'handle' are attached to the back of the [subject property], allowing someone to dangerously climb out of the window to access the roof below. This step is visible from the back of the house; the wood used for this step contrasts with the light gray of the house's paint color and protrudes out." (SAC, ¶ 32.)

On April 2, 2022, plaintiff attended a Deltopia event at the subject property that was hosted by Kappa Eta. (SAC, ¶ 44.) At around 1:00 p.m., plaintiff attempted to use the makeshift step to gain access to the roof and fell over ten feet to the concrete ground, striking her head and sustaining serious injuries. (SAC, ¶ 45.)

Regents demurred to the fifth and sixth causes of action, which were the only causes of action against it. The demurrer was sustained without leave to amend. As a result, Regents was dismissed and judgment entered in its favor.

On May 17, 2024, plaintiff substituted in Michael S. Andrade ("Michael") as Doe 1. [Note: As Steven Andrade and Michael Andrade share the same surname, they will be referred to by their given names for clarity. No disrespect is intended.]

On February 5, 2026, Andrade Investments, Steven, and Michael filed the present motion for summary judgment, or in the alternative, summary adjudication, in favor of Steven.

Plaintiff opposes the motion.

Analysis:

Standard on Summary Judgment

A defendant's motion for summary judgment asks the court to determine that the entire action has no merit, and to terminate the action without the necessity of a trial. (Code Civ. Proc., § 437c, subd. (a).) The procedure enables the court to look behind the pleadings to determine whether the party against whom the motion is directed has evidence to back up the claims. The court must determine from the evidence presented that there is no triable issue as to any material fact, and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) There is no obligation on the opposing party to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element necessary to sustain an adjudication in his favor. (Consumer Cause, Inc. v. Smilecare (2001) 91 Cal.App.4th 454, 468.) "[W]e liberally construe plaintiff's evidentiary submissions and strictly scrutinize defendant's own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff's favor." (Johnson v. American Standard, Inc. (2008) 43 Cal.4th 56, 64.)

"A defendant ... has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant ... has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).)

In resolving the motion, the court may not weigh the evidence. (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.) Rather, the role of the trial court in resolving a summary judgment motion is to determine whether issues of fact exist, not to decide the merits of the issues. (Molko v. Holy Spirit Assn. (1988) 46 Cal.3d 1092, 1107.) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Aguilar v. Atlantic Richfield, supra, 25 Cal.4th at p. 850.) Any doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the motion. (Molko v. Holy Spirit Assn., supra at p. 1107.)

Separate Statement

"Code of Civil Procedure section 437c, subdivision (b)(1), requires each motion for summary judgment to be accompanied by a separate statement " 'setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence.' " California Rules of Court, rule 3.1350(d)(2)4 states: " 'The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion.' " Under the Rules of Court, " ' "Material facts" ' " are facts that relate to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion and that could make a difference in the disposition of the motion.' " (Rule 3.1350(a)(2).)" (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865,

874-875.)

"The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion." (Code Civ. Proc., § 437c, subd. (b)(3).)

"Separate statements serve a laudable purpose. As explained in Weil & Brown, California Practice Guide (The Rutter Group 1996) Civil Procedure Before Trial, paragraph 10:94.1, pp. 10–31, 10–32, these documents are 'intended to permit the judge to determine quickly whether the motion is supported by sufficient undisputed facts. If the opposing statement disputes an essential fact alleged in support of the motion, the judge merely has to review the evidence cited in support of that fact. This saves the judge from having to review all the evidentiary materials filed in support of and in opposition to the motion.' " (Kulesa v. Castleberry (1996) 47 Cal.App.4th 103, 113.)

Plaintiff's separate statement of additional material facts contains a multitude of irrelevant "facts". Only facts material to the analysis of the present motion will be considered.

The court has read and considered all the undisputed material facts ("UMFs"), as well as plaintiff's additional material facts ("PUMFs"), and has considered all the supporting evidence. The relevant UMFs and PUMFs that are either undisputed or not reasonably disputed are:

On April 2, 2022, plaintiff attended an annual event in Isla Vista known as Deltopia, which involves crowds of college students and day-drinking events centering around Del Playa Drive. (UMF No. 1.)

Plaintiff was a 20 year old UCSB student on April 2, 2022. (UMF No. 2.)

Plaintiff attended a Deltopia event at the subject property during Deltopia on April 2, 2022. (UMF No. 3.)

Plaintiff exited an upper level window at the subject property and fell more than 10 feet onto concrete and sustained injuries. (UMF No. 4.)

Plaintiff has no memory of the events of April 2, 2022, and does not recall entering the subject property on that date nor recall stepping out of the window at the subject property. (UMF Nos. 5-7.)

Plaintiff has no memory of whether she touched, used, or attempted to use any wooden pieces or structures on the exterior of the subject property. (UMF No. 27.)

On April 2, 2022, Andrade Investments owned the subject property. (UMF No. 29.)

On April 2, 2022, Michael was the lessor and the property manager for the subject property. (UMF No. 33.)

Prior to the April 2, 2022 incident, plaintiff considered climbing onto rooftops to be dangerous. (UMF No. 36.) Plaintiff agrees that stepping out a window onto a lower surface like a roof carries a risk. (UMF No. 37.)

Plaintiff consumed alcohol before going to the subject property on April 2, 2022. (UMF No. 38.)

At 1:44 p.m., on the date of the incident, plaintiff's blood was drawn in the Emergency Department at Santa Barbara Cottage Hospital, and a laboratory analysis measured her blood alcohol content as 0.249. (UMF No. 39.) [Note: Plaintiff objects to the UMF. However, it is not reasonably disputed. Plaintiff's own expert, Iain McIntyre, PhD, states in his report, at paragraph 8, the same undisputable fact. Dr. McIntyre's opinions center around the specimen integrity, chain of custody, laboratory, and analytical details. The court renders no opinion on the accuracy of the test, but it is undisputed that the test resulted in a reading of a 0.249 BAC.]

Plaintiff was intoxicated at the time of her fall. (UMF No. 42.) [Note: Not reasonably disputed. Based on the evidence submitted, no reasonable person could conclude that plaintiff was not intoxicated at the time of her fall.]

Michael testified that he went to the subject property roughly once per week from 2020 through 2022. (PUMF No. 10.)

Prior to April 2, 2022, Michael was aware of tenants of the subject property accessing the roof based on seeing items such as couches and chairs on the roof, which he photographed, and the fact that he spoke with the tenants about going on the roof. (PUMF No. 15.)

On several dates, Michael took photographs of furniture on the roof, had the tenants go onto the roof to remove them, and was aware that tenants used their own ladders to access the roof. (PUMF Nos. 16, 17, 18.)

Michael testified that he believes the "Dangerous Condition" was constructed at some point in 2021. (PUMF No. 19.) [Note: Plaintiff's opposition to the motion describes the dangerous condition as "an exterior wooden step affixed to the exterior of a second story living room window that facilitated stepping over onto the adjacent roof. (Opp., p. 1, ll. 7-9).]

Michael testified that he did not want people hanging out on the roof because it would give them a chance to fall off the roof. (PUMF No. 28.)

Michael testified that he never instructed the tenants not to use the dangerous condition as a ladder brace. (PUMF No. 29.)

Michael testified that he thinks someone he hired to paint the subject property added the dangerous condition as a ladder brace sometime in 2021, but he never asked anyone from that project to remove it. (PUMF No. 31.)

Witnesses testified that the "dangerous condition" was present on April 2, 2022, and that they had used it to access the roof prior to plaintiff's fall, and observed other people do the same thing. (PUMF Nos. 35-38, 42, 48.)

"Lacey Parsons testified that while she was in living room of the Subject Property behind Plaintiff in line to go out onto the roof she saw Plaintiff going up to the window to go onto the roof and then did not see her anymore; she looked out of the window and saw Plaintiff on the ground." (PUMF No. 91.)

Negligence – Premises Liability

The first cause of action, for premises liability, is against Andrade Investments and Michael. The second cause of action is also for premises liability and is solely against Steven.

"Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person . . ." (Civ. Code, § 1714, subd. (a).)

"The elements of a premises liability claim such as the one at issue in these proceedings are: a legal duty of care; breach of that duty; and proximate cause resulting in injury." (Moses v. Roger-McKeever (2023) 91 Cal.App.5th 172, 177-178.)

Duty is the first consideration when analyzing any negligence cause of action, because without the existence of a duty, none of the other elements are relevant.

"[T]he existence of a duty is a question of law for the court. [Citations.]" (Kentucky Fried Chicken of Cal., Inc. v. Superior Court (1997) 14 Cal.4th 814, 819.)

Defendants' first argument is that they owed no duty to plaintiff because the danger was open and obvious and plaintiff had no necessity to encounter it. They additionally argue that plaintiff's voluntary intoxication does not create a duty and that plaintiff has produced no evidence that any condition of the property caused plaintiff's fall.

" 'A landlord owes a duty of care to a tenant to provide and maintain safe conditions on the leased premises. [Citation.] This duty of care also extends to the general public.' " [Citation.]" (Kaney v. Custance (2022) 74 Cal.App.5th 201, 214 (Kaney).)

"Whether a duty should be imposed on a defendant depends on factors set forth in Rowland v. Christian (1968) 69 Cal.2d 108, 112-113 []. The factors include foreseeability of harm plus the burden on the defendant and the consequences to the community of imposing a duty. Foreseeability is a question of law, and it is " 'typically absent when a dangerous condition is open and obvious. [Citation.]' " [Citation.] " ' "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." ' [Citation.] In that situation, owners and possessors of land are entitled to assume others will ' "perceive the obvious" ' and take action to avoid the dangerous condition. [Citation.]' " [Citation.]" (Kaney, supra, 74 Cal.App.5th at p. 215.) " 'An exception to this general rule exists when ' "it is foreseeable that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it)." ' [Citation.] In other words, while the obviousness of the condition and its dangerousness may obviate the landowner's duty to remedy or warn of the condition in some situations, such obviousness will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition.' " [Citation.]" (Ibid.)

"[A]lthough the obviousness of a danger may obviate the duty to warn of its existence, if it is foreseeable that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it), there may be a duty to remedy the danger, and the breach of that duty may in turn form the basis for liability, if the breach of duty was a proximate cause of any injury." (Osborn v. Mission Ready Mix (1990) 224 Cal.App.3d 104, 122.)

Here, while necessity did not require plaintiff to encounter the danger, it was reasonably foreseeable that people would choose to do so, and Andrade Investments and property manager Michael had a duty to remove the wooden pieces. Whether or not plaintiff actually used the wooden pieces that were affixed to the subject property in her attempt to climb onto the roof does not matter. The wooden pieces were undisputedly used for that purpose, which was known by Michael, and a reasonable trier of fact could conclude that their presence encouraged people, including intoxicated individuals, to engage in the dangerous act of climbing on the outside of the house to access the roof. A reasonable trier of fact could also conclude, based on the testimonial evidence, that plaintiff more likely than not did use the wooden pieces which caused or contributed to her fall.

Defendants next argue that plaintiff's action is barred because she assumed the risk. Defendants' argument fails. First, plaintiff's actions were not the type of activity that primary assumption of the risk applies to. Secondly, even if it were, Andrade Investments and Michael breached a duty of care, which must be considered when analyzing the issue.

"Although the difference between the " 'primary assumption of risk' " / " 'secondary assumption of risk' " nomenclature and the " 'reasonable implied assumption of risk' " / " 'unreasonable implied assumption of risk' " terminology embraced in many of the recent Court of Appeal decisions may appear at first blush to be only semantic, the significance extends beyond mere rhetoric. First, in " 'primary assumption of risk' " cases-where the defendant owes no duty to protect the plaintiff from a particular risk of harm-a plaintiff who has suffered such harm is not entitled to recover from the defendant, whether the plaintiff's conduct in undertaking the activity was reasonable or unreasonable. Second, in " 'secondary assumption of risk' " cases-involving instances in which the defendant has breached the duty of care owed to the plaintiff-the defendant is not entitled to be entirely relieved of liability for an injury proximately caused by such breach, simply because the plaintiff's conduct in encountering the risk of such an injury was reasonable rather than unreasonable. Third and finally, the question whether the defendant owed a legal duty to protect the plaintiff from a particular risk of harm does not turn on the reasonableness or unreasonableness of the plaintiff's conduct, but rather on the nature of the activity or sport in which the defendant is engaged and the relationship of the defendant and the plaintiff to that activity or sport. For these reasons, use of the " 'reasonable implied assumption of risk' " / " 'unreasonable implied assumption of risk' " terminology, as a means of differentiating between the cases in which a plaintiff is barred from bringing an action and those in which he or she is not barred, is more misleading than helpful." (Knight v. Jewett (1992) 3 Cal.4th 296, 309 (Knight).)

"[I]n the " 'secondary assumption of risk' " context, the defendant has breached a duty of care owed to the plaintiff. When a risk of harm is created or imposed by a defendant's breach of duty, and a plaintiff who chose to encounter the risk is injured, comparative fault principles preclude automatically placing all of the loss on the plaintiff, because the injury in such a case may have been caused by the combined effect of the defendant's and plaintiff's culpable conduct." (Knight, supra, 3 Cal.4th at p. 310.)

As for plaintiff's intoxication: "Voluntary intoxication may amount to wilful misconduct. Nevertheless, the drinking is not so " 'intentional' " that it disqualifies an injured person from comparative negligence relief." (Blake v. Moore (1984) 162 Cal.App.3d 700, 707.)

The present action is a textbook example of potential comparative negligence. Summary judgment will be denied.

Summary Adjudication

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).)

"A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

"A defendant ... has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant ... has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).)

Defendants seek summary adjudication as to the second cause of action against Steven, for premises liability, arguing that Andrade Investments was the sole owner and landlord of the subject property and that Michael was the manager of the property.

Plaintiff argues that Steven can be held personally liable if it can be shown that he personally directed or participated in tortious conduct, under the doctrine of respondeat superior, and under an alter ego theory.

“The pleadings play a key role in a summary judgment motion.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493 (Hutton).) “The materiality of a disputed fact is measured by the pleadings [citations], which ‘set the boundaries of the issues to be resolved at summary judgment.’ [Citations.]” (Conroy v. Regents of University of California (2009) 45 Cal.4th 1244, 1250.) “Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings. [Citations.]” (Hutton, supra, 213 Cal.App.4th at p. 493.)

By way of the SAC, plaintiff alleges that the subject property was owned and controlled by Steven and Andrade Investments. (SAC, ¶¶ 2, 7, 30.) The SAC also alleges that Steven was the acting landlord of the property. (SAC, ¶ 61.) However, the undisputed, and not reasonably disputed, facts show that those allegations are untrue. Significantly, there are no alter ego allegations contained in the SAC.

The undisputed facts show:

On April 2, 2022, Andrade Investments owned the subject property. (UMF No. 43.) On April 2, 2022, Michael was the lessor and property manager for the subject property. (UMF No. 47.) Michael signed the lease agreement as the property manager and lessor for the 2021-2022 period at the subject property. (UMF No. 48.) Plaintiff’s own separate statement of additional facts confirms that Michael is the party that maintained all relevant responsibilities, as the manager, for the subject property. Steven testified that he relies on Michael to conduct inspections at the property, and he does not maintain a record of his own visits to the subject property. (PUMF No. 104.)

“ ‘To recover on an alter ego theory, a plaintiff need not use the words “ ‘alter ego,’ ” but must allege sufficient facts to show a unity of interest and ownership, and an unjust result if the corporation is treated as the sole actor.’ ” [Citations.]” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 696.) Allegations that an individual defendant is owner of all stock of a corporation and personally made all its business decisions is insufficient to show alter ego liability. (Leek v. Cooper (2011) 194 Cal.App.4th 399, 415.)

Here, there are no allegations sufficient to show a unity of interest and ownership coupled with an unjust result if Andrade Investments is treated as the sole actor under the second cause of action. The SAC seeks to impose liability on Steven as the owner and manager of the subject property and those allegations have been negated. Nor is there any evidence before the court establishing that Steven acted negligently as an individual with respect to plaintiff’s action.

The motion for summary adjudication will be granted. This in no way reflects any determination, one way or the other, whether Steven may be later held liable for the judgment against Andrade Investments, under an alter ego theory, should plaintiff prevail and take the legally necessary steps.

Objections to Evidence

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.” (Code Civ. Proc., § 437c, subd. (q).)

Plaintiff and defendants object to much of the evidence presented by the others. Most of the objections pertain to evidence that is in no way material to the disposition of the motion and need not be ruled upon. As to the specific evidence cited above, in the court’s analysis, the objections are overruled.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US